

22STCV08738 22STCV08738

County: los-angeles
Division: Civil Law and Motion
Department: 506
Hearing date: 2026-08-11
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Case Number: 22STCV08738 Hearing Date: August 11, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

MICHAEL GONZALEZ, et al.,

Plaintiffs,

vs.

HOTEL BYRON, et al.,

Defendants.

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CASE NO.: 22STCV08738

[TENTATIVE] ORDER GRANTING MOTIONS TO COMPEL
DISCOVERY RESPONSES AND TO DEEM RFAs ADMITTED

Dept. 506

8:30 a.m.

August 11, 2026

Defendant

Albany Investment Properties, LLC has served Form Interrogatories (Set One), Special Interrogatories (Set One), Requests for Production (Set One), and Requests for Admission (Set One). Plaintiffs never served responses.

On

June 24, 2026, Defendant filed motions to compel responses and motions to deem the RFAs admitted. Plaintiffs did not file any oppositions.

Where

a party fails to serve timely responses to discovery requests, the court may make an order compelling responses. (Code Civ. Proc., §§ 2030.290 [interrogatories], 2031.300 [documents]; Healthcare Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 403.) A party that fails to serve timely responses waives any objections to the request, including ones based on privilege or the protection of attorney work product. (Code Civ. Proc., §§ 2030.290, subd. (a), 2031.300, subd. (a).)

When

a party fails to timely respond to a request for admission, the propounding party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted. (Code Civ. Proc., § 2033.280, subd. (b).) The party who failed to respond waives any objections to the demand, unless the court grants them relief from the waiver, upon a showing that the party (1) has subsequently served a substantially compliant response, and (2) that the party's failure to respond was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc., § 2033.280, subds. (a)(1)-(2).) The court shall grant a motion to deem admitted requests for admissions, "unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." (Code Civ. Proc., § 2033.280, subd. (c).)

Plaintiffs

filed no oppositions to these motions and did not serve timely responses. It does not appear that Plaintiffs served substantially compliant responses prior to the hearing.

Accordingly,
the motions are GRANTED.

Michael

Gonzalez is ordered to provide verified responses, without objections, to Form Interrogatories (Set One), Special Interrogatories (Set One), and Requests for Production (Set One) within 30 days.

April

Bran is ordered to provide verified responses, without objections, to Form Interrogatories (Set One), Special Interrogatories (Set One), and Requests for Production (Set One) within 30 days.

Michael

Angel Gonzalez is ordered to provide verified responses, without objections, to Form Interrogatories (Set One), Special Interrogatories (Set One), and Requests for Production (Set One) within 30 days.

Requests

for Admission (Set One) is deemed admitted by Michael Gonzalez.

Requests

for Admission (Set One) is deemed admitted by April Bran.

Moving

party to give notice.

Parties

who intend to submit on this tentative must send an email to the Court at

indicating intention to submit. If all parties

in the case submit on the tentative ruling, no appearances before the Court are

required unless a companion hearing (for example, a Case Management Conference)

is also on calendar.

Dated this 11th day of August 2026

Hon. Thomas D. Long

Judge of the Superior

Court